APPENDIX
(OFF PREMISES CONTRACT)

Right to cancel

You have the right to cancel this contract within 14 days without giving any reason.

The cancellation period will expire after 14 days from the conclusion of the contract.

To exercise the right to cancel, you must inform us at Bramsdon & Childs of 141 Elm Grove, Southsea, Portsmouth Hampshire PO5 1HR, telephone number 02392 821251, fax number 02392 893777 of your decision to cancel this contract by a clear statement (e.g. a letter sent by post, fax or email). You may use the attached model cancellation form but it is obligatory.

To meet the cancellation deadline it is sufficient for you to send your communication concerning your exercise by the right to cancel before the cancellation period has expired.

Effects of cancellation

If you cancel this contract, we will reimburse you all payments received from you.

We would make the reimbursement without undue delay, and not later than-

(a) 14 days after the date we receive back from you any goods supplied, or
(b) (If earlier) 14 days after the date you provide evidence that you have returned the goods, or
(c) If there were no goods supplied 14 days after the day in which we are informed about your decision to cancel this contract.

We would make the reimbursement using the same means of payment as you used for the initial transaction, unless you have expressly agreed otherwise; in any event, you would incur any fees as a result of the reimbursement. If you requested us to begin the performance of services during the cancellation period, you should pay us an amount which is in proportion to what is being performed until you have communicated with us your cancellation from this contract, in comparison with the full coverage of the contract.

……

Model cancellation form

To Bramsdon & Childs of 141 Elm Grove, Southsea, Portsmouth Hampshire PO5 1HR, telephone number 02392 821251 fax number 02392 893777

I/We hereby give notice that I/We cancel my/our contract for the supply of the following service…

Ordered on received on

Name of consumer(s),

Address of client(s),

Signature of client(s)

Bramsdon & Childs *Solicitors*

TERMS AND CONDITIONS OF BUSINESS

Responsibility for the Work

At the beginning of your matter you will be told the name of the lawyer responsible for the day to day conduct of your matter. This person may change although we will endeavour to avoid this as far as possible. This person may also from time to time arrange for other members of the firm to assist in your matter.

Identification

You must provide us with such information and/or documentation as we may require from time to time regarding your identification and legal, tax and citizenship status.

Supervision and Client Liaison

A client liaison partner will be appointed and you will be told who this is at the beginning of the matter or if this person changes.

If you have any problems about the manner in which your matter is being handled then you should contact the client liaison partner.

The client liaison partner will also be responsible for the supervision of your matter.

Charges

Details of our charges are set out in an appendix to these terms. These charges are subject to revision and if they are revised you will be notified.

You may have Legal Expenses Insurance cover. If you have Legal Expenses Insurance then you should inform us straightaway. If you are unsure then you should discuss the matter with us. If you do not tell us about any such insurance cover we shall assume that you do not have it. Legal Expenses Insurance cannot be backdated.

If we begin work before you are granted Legal Expenses Insurance cover or if we continue working after your Legal Expenses Insurance cover has ended we shall be acting for you on a private paying basis.

You remain primarily responsible for our costs regardless as to whether or not your costs may be met by an insurance company or any other source of funding.

We are unable to act or advise on a legal aid basis. If you believe that you may qualify for legal aid then you must tell us so that we can discuss this with you and, if appropriate, refer you to other solicitors able to offer you legal aid.

If we are jointly instructed by you and any other person then you will be jointly and severally liable with that other person for the full amount of our charges and we are entitled to enter into any arrangement with that other person regarding the payment of our charges without this affecting your liability. If you are a limited company or other incorporated association then we reserve the right at any time to request the directors or other officers of the corporation to enter into a personal guarantee to cover our past and future charges and it is a condition of our continuing to act for you that any such guarantee should be executed.

In all cases where the work or advice carried out by us is expressed to be free of charge, this means free of charge to you and we reserve our right to render you an account at our firm's normal charging rates should you succeed in obtaining a settlement or award which includes a provision that another party should meet or contribute towards your costs.

In the event of a contingency or conditional fee agreement which we have entered into with you being void, invalid or for any reason unenforceable then you will be deemed to have retained us on our normal private paying terms.

All disbursements included in our bills have been paid unless stated otherwise.

From time to time you will be provided with estimates of our likely fees for carrying out work up to a certain stage or completing the matter but these estimates are approximate only and are subject to revision as the matter progresses.

In certain categories of work we may have been able to quote you a fixed fee, in which case this will be set out in our initial letter.

In the event of a matter for which we have quoted a fixed fee not proceeding then we will charge for the work done on our usual terms subject to the limit of the fixed fee.

Limit of Liability

Our total liability to you in relation to any loss or liability in any work shall in no circumstances exceed £2,000,000.00 in respect of any one transaction or matter.

Payment of costs

It is our usual practice to ask for payments on account of our anticipated costs and disbursements at the beginning of the matter and then at later intervals.

In addition we may from time to time during the course of the matter render you interim bills.

We may apply funds which we are holding on your behalf against outstanding costs and disbursements unless we have expressly agreed not to do so.

It is a condition of our continuing to act for you and any matter that you settle promptly requests for payments on account and bills and that we should at all material times be satisfied that you are able to afford to meet those costs you are likely to incur with us.

All bills should be paid no later than 14 days after delivery and unpaid bills will attract interest from one month after delivery at the rate prescribed by the Judgment Debts (Rate of Interest) Order 1993 or such statutory or other provision as may amend or replace it until settlement.

Should you not pay a bill when it is due and our credit control department contact you about it then we reserve our right to make a charge in respect of the time spent equivalent to the charging rate of a legal clerk plus VAT which will be added to the amount due. Should you provide us with a cheque which is dishonoured by your Bank we shall make an administrative charge of £50.00 plus VAT.

Order or Agreement for Costs

It may be that in the event of your matter being concluded successfully you will be entitled to payment of your costs by some other party.

You remain directly responsible for our costs and therefore if costs paid by the other party are less than the amount chargeable by us or if they fail to pay all or any of these costs the shortfall will still be payable by you.

Advances

If for any reason we lend you money (e.g. because you have been let down by your mortgage lender in a conveyancing transaction) then it is a condition of such a loan that you will pay an arrangement fee of not less than ½% of the loan or £250.00 plus VAT (whichever is the greater) and that any loan will attract interest of 4 per cent above Barclays Bank Plc base rate from time to time in force and will be repayable on demand.

Interest

1. If we hold money on deposit in a separate designated client account on your behalf we will account to you for all interest earnt on that account.
2. If we hold money on behalf in our general client account then unless we have otherwise agreed with you we will pay you a gross sum in lieu of interest at the rate you would have received should we have set up a designated client account for you for the time being over a period when interest is due except where:

a) the amount of interest calculated is less than £50.00;

b) where the money has been held in respect of any conveyancing transaction for a period of up to six weeks;

3. In determining the period over which interest is to be calculated, we will take the period between the date when the relevant funds received by us clear our account and the date the funds are sent out.
4. We will usually calculate and pay interest once your matter has been concluded and may at our discretion reduce our costs by the sum equivalent to the interest payable.

Service of proceedings

You may not appoint us to accept service of any proceedings on your behalf without our express permission.

Arranging Insurance

This firm is not authorised by the Financial Conduct Authority. We are able in certain circumstances to offer a limited range of investment services because we are regulated by the Solicitors Regulation Authority. We are included on the register maintained by the Financial Conduct Authority so that we can carry on insurance mediation activities, which is broadly the advising on, selling and administration of insurance contracts. This part of our business, including arrangements for complaints or redress if something goes wrong, is regulated by the Solicitors Regulation Authority. The register can be accessed via the Financial Conduct Authority Web site at: Home (fca.org.uk).

The Law Society is a designated professional body for the purposes of the Financial Services and Markets Act 2000 but responsibility for regulation and complaints handling has been separated from the Law Society's representative functions. The Solicitors Regulation Authority is the independent regulatory body of the Law Society and the Legal Complaints Service is the independent complaints handling body of the Law Society.

If we arrange for you directly or indirectly a policy of insurance or pension scheme or deal with the annual renewal of such arrangements we might receive a commission.

We will inform you of the amount of any such commission and will agree with you as to whether we will retain the amount received as payment for our services or account to you for the commission and charge you separately for the work done.

Storage

We make no charge for storing security documents.

General

These terms replace any prior terms, representations or other understanding or arrangement which may have been made or reached in relation to this or any other matter and may only be altered by written notice to you.

You are deemed to have accepted these terms by instructing or continuing to instruct us in connection with this or any other matter.

BRAMSDON & CHILDS
SOLICITORS

APPENDIX

Our Charges

Hourly Rates

Status of Lawyer	
Partner	£285.00
Consultant	£285.00
Staff Solicitor – Grade 1	£275.00
Staff Solicitor – Grade 2	£245.00
Legal Executive	£250.00
Senior Executive	£225.00
Trainee Solicitor/Para Legal	£200.00
Trainee Legal Executive/Ilex Member	£200.00
Legal Clerk	£200.00

These hourly rates are the starting point for our charges and particular matters may attract a higher rate or additional charge in which case you will be notified accordingly.

Letters and Telephone Calls

Letters out and all telephone calls are charged at 10% and letters in at 5% of the rates charged unless more than 6 minutes is spent in relation thereto in which case an additional charge will be made for the total time spent at the applicable rate.

Communications by electronic transmission (e-mails) in and out, are all charged at 10% of the above rates.

Disbursements

The above charges do not include disbursements.

Travelling by public transport will be charged at cost, travelling by private motor car will be charged at 45 pence per mile.

Photocopying will be charged at 25 pence per sheet, postages and other incidental expenses will be charged at cost.

VAT

These charges do not include VAT which will be charged at the appropriate rate.

BRAMSDON & CHILDS
SOLICITORS

CLIENT IDENTIFICATION

The Money Laundering Regulations require us to obtain satisfactory evidence from clients of their identity and address in the form of different documents, in other words we may not accept one document as evidence of both identity and address.

The best form of identification is of course that which contained a photograph of the client.

The firm's policy is to require clients to produce their passport and driving licence and only if these cannot be produced to then ask clients to produce some alternative form of identification, again preferably containing a photograph of the client.

Acceptable alternative evidence for identity include the following:

- Current pension/child benefit/DSS/disability allowance book – or letter confirming payment into customer's bank account;
- Current shotgun/firearm certificate;
- Latest notification of tax coding.

Acceptable alternative evidence for address include the following:

- Bank/building society/credit card statement dated within the last 3 months;
- Utility bill (not a mobile phone bill) dated within the last 3 months;
- Current year's council tax bill/local authority rent book;
- Current pension/child benefit/DSS/disability allowance book – or letter confirming payment into customer's bank account;
- Current local council or reputable letting agency tenancy agreement;
- Latest TV/vehicle licence reminder.

If you are an established client of this firm then a solicitor within the firm may be able to confirm your identity and address which would then be sufficient evidence in this regard.

If the client is a limited company then we shall need to see its certificate of incorporation and last annual return and should also require identification documents directors nominated to deal with the transaction concerned.

There would also be other cases in which we may require identification not only of the client but also of other persons with interest in the transaction.

We cannot proceed with the transaction until such time as this evidence has been produced.

If you have any concerns or queries regarding identification then please do not hesitate to speak to the lawyer dealing with your matter

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APPENDIX- FRAUD

1. In all conveyancing matters our client bank account details will be provided to you at the outset at a face to face meeting or in a letter which is not sent by email;

2. In all other non-conveyancing matters our client bank account details will be provided to you when the need arises either at a face to face meeting or by a letter which is not sent by email;

3. It is very unlikely that we shall change our bank account during the course of the matter and you should be suspicious if you are informed of any change and check any change with us either at a face to face meeting or by speaking personally to the lawyer or the lawyer's secretary dealing with the matter;

4. In all conveyancing matters you must provide details of your bank account at the outset either at a face to face meeting, in a telephone call with the lawyer or the lawyer's secretary dealing with the matter or by some other means which is secure;

5. In all other matters you must provide us with details of your bank account when the need for this information arises either at a face to face meeting, in a telephone call with the lawyer or the lawyer's secretary dealing with the matter or by some other means which is secure;

6. If we are told that you have changed your bank account details during the course of the matter then we will check this with you but never by email at either a face to face meeting or, if that is not possible or practical, by speaking to you personally over the telephone.

Complaints procedure

This procedure is intended to cover complaints regarding bills rendered by the firm and the conduct by lawyers and other members of staff employed by the firm of legal and related work.

Bramsdon and Childs takes any expression of dissatisfaction about the firm or the services we provide very seriously and aim to ensure that all complaints are handled promptly, fairly and effectively.

How do I make a complaint?

We are sorry that you are considering making a complaint. In the first instance we encourage you to raise concerns directly with your case handler. You would have been advised at the outset of your matter who that person is and also who your client liaison partner is together with contact details for both. It is best if your concerns can be dealt with informally either by telephone or at a meeting. We find this generally the quickest and most effective way to resolve your complaint.

Should this not result in your problem being resolved or if the situation is urgent or there are other exceptional circumstances then you should contact your client liaison partner to formally make your complaint. If your complaint is about the client liaison partner another partner will be appointed to take over this role.

A formal complaint can be made in the following ways:

- By Email- to the client liaison partner using the details on your initial engagement letter.
- By Email to the firm- legalservices@bramsdonandchilds.com
- In writing- to your local office marking it for the attention of your client liaison partner.
- By Phone- please contact your local office who will request a call back from the client liaison partner.

If for any reason circumstances mean you are unable to provide details of your complaint in writing please contact us to discuss and we can make arrangements to talk through your concerns and confirm them to you in writing if applicable.

What to Expect

The client liaison partner will contact you within 14 days of your complaint being received to acknowledge receipt and confirm our understanding of your complaint and the next steps. This will be in writing or by phone.

The client liaison partner will determine how best to resolve your complaint which may include asking you to set out your complaint in writing. As above if you are not able to do so please discuss this with the client liaison partner.

They may consider that your complaint is best resolved informally, for example by having the case handler concerned telephone you or write to you directly to explain or apologise as may be appropriate.

If an informal resolution appears not to be appropriate or is unsuccessful, the client liaison partner will investigate and will contact you by telephone or in writing to advise you of the outcome of their investigation. In particular they will advise if the complaint is accepted wholly, in part or not accepted and how we propose to remedy it.

This will normally be completed within 28 days of their first contact with you. If the matter is complex or if there is good reason why the investigation cannot be completed within that time, then they will set a different time period giving their reasons for this.

If you are not content with the outcome of their investigation or any delay then your complaint can be passed to the managing partner, or the next senior partner if the complaint is about the managing partner, for review.

The managing partner will write to you with the results of their review within 28 days of the matter being referred

to them. They will advise if any further action should be taken.
We aim to complete all of our internal investigations into your complaint within eight weeks. If for some unforeseen reason this is not possible then we will notify you as soon as it becomes apparent and confirm a revised timetable.

Please note- We may determine, based on the nature of your complaint, to deviate from the process outlined above. If we consider this appropriate we will notify you of the revised process.

What to do if we cannot resolve your complaint.

If we are unable to resolve your complaint within eight weeks then you can refer your complaint to the Legal Ombudsman; an independent complaints body who can investigate complaints about the legal service you have received from us. The Legal Ombudsman can investigate complaints:

- Up to one year from the date of the problem happening; or
- Within one year of when you found out about the problem; and
- Within six months of receiving our final response.

The legal Ombudsman details are:

- www.legalombudsman.org.uk
- 0300 555 0333
- enquiries@legalombudsman.org.uk
- PO Box 6806, Wolverhampton, WV1 9WJ

Alternative complaints bodies such as ADR Group (http://www.adrgroup.co.uk) are available however we do not agree to use these services because we consider that the service offered by the Legal Ombudsman is the most appropriate means of resolving matters between us.

If your complaint relates to a breach of the Solicitors Regulation Authority (SRA) Standards and Regulations (https://www.sra.org.uk/solicitors/standards-regulations) and you are not happy with the response following our investigation then you can make a report via the SRA's website (https://www.sra.org.uk/consumers/problems/report-solicitor).

PRIVACY POLICY

We at Bramsdon & Childs ('the Firm') respect the privacy of our clients and visitors to our website and such persons and organisations with whom we interact

Our Privacy Policy sets out the data processing practices carried out through the use of paper, internet and other electronic devises by the Firm.

This Privacy Policy is reviewed annually and we recommend that you therefore regularly review this Policy. The version was last updated on 25th May 2018.

All personal data captured will be processed and held in accordance with the requirements of the General Data Protection Regulation ('GDPR'). The Firm is registered in accordance with the Regulation with registration number Z907188X.

The Data Controller is Andrew White who can be contacted at legalservices@bramsdonandchilds.com

We have appointed a data protection officer (DPO) Mr. Andrew White, who is responsible for overseeing questions in relation to this privacy notice. If you have any questions about this privacy notice, including any requests to exercise your legal rights contact the DPO Andrew White at legalservices@bramsdonandchilds.com.

1. Definitions:

1.1.1 **Automated Processing** shall mean any form of automated processing of Personal Data to evaluate aspects relating to an individual and analyse or predict aspects of individuals.

1.1.2 **Personal Data** shall mean any information relating to an identified or Identifiable Natural Person. Personal Data includes special categories of Personal Data and pseudonymised Personal Data but evades anonymous data, or data that has had the identity of an individual permanently removed.

1.1.3 **Pseudonymised Data:** Shall mean replacing information that directly or indirectly identifies an individual with one or more artificial identifiers or pseudonyms so that the person to whom the data relates cannot be identified without the use of additional information.

1.1.4 **Identifiable Natural Person** shall mean a person who can be identified, directly or indirectly by reference to an identifier such as a name, identification number, location data, online identifier, one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural persons.

1.1.5 **Special Categories of Personal Data** shall mean Personal Data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, processing of genetic data, biometric data for the purpose of identifying an Identifiable Natural Person, data concerning health, sex life, sexual orientation.

1.1.6 **Data** shall mean information of any kind, however represented whether comprising words, database entries, numbers, graphs, maps, pictures, sketches or otherwise in any other form and on any media

1.1.7 **Processing** shall mean any operation or set of operations which is performed on Personal Data or on sets of Personal Data whether or not by automated means such as collection, recording, organization, structuring, storage, adaption, alteration, retrieval, consultation, use, disclosure by transmission, dissemination, restriction, erasure or destruction.

1.1.8 **Profiling** shall mean any form of automated processing of Personal Data consisting of the use of Personal Data to evaluate certain personal aspects relating to a natural person, in particular to analyses or predict aspects concerning the natural person's performance at work, economic situation, health, personal preferences, interests, reliability, behavior, location or movements

1.1.9 **App** shall mean any computer and mobile based application

1.1.10 **Website** shall mean an internet website for the Firm

2. Data

The Firm may collect and process Data and Personal Data from you, either automatically or manually during the operations of our Websites, Apps, forms you may fill out (including part completed forms)

2.1 Manually requested Data and Personal Data Collected from You

2.1.1 The Firm may request the following manual information direct from you:

1) *Identity data* such as first name, maiden name, last name, marital status, title, date of birth and gender, national insurance number
2) *Contact data* such as billing address, delivery address, email address and telephone number.
3) *Financial data* such as bank account and payment card details.
4) Personal descriptions
5) Details about the nature of your enquiry.
6) Photographs (only if required in order for the Firm to provide the service) including photographic ID of passports and driving licenses in order to adhere to Money Laundering Regulations.
7) *Transaction data* including details about payments to and from you and other details of services purchased from us.
8) *Technical data* including IP address, login data, browser type and version, time zone setting and location, browser plug in types, operating system and platforms and other devices used to access the company or any Trading Style Websites.
9) *Profile data* including username, password, feedback and survey responses.
10) *Usage data* including how you use our website products and services.
11) Marketing and communications data.

2.1.2 Personal Data is collected on any forms (including part completed forms) you may fill out on our Website or Apps or on paper forms provided to you.

2.1.3 If for any reason you communicate with our personnel, the Firm may collect information as listed above.

2.1.4 You may give the Firm any Data and Personal Data by submitting any information (as listed above) or Data Upload onto any App, Website, Company server or other device owned by the Firm. The Data may include information you provide when you report a problem with any App, Website or other device owned by the Firm.

Data and Personal Data which may be Automatically collected:

2.2 Information about your visit to any App, Website or other device collected through the use of Cookies, Web server logs, including (but not limited to) IP address, the full Uniform Resource Locators (URL) clickstream to through and from our site (including date and time); products you viewed or searched for; page response times, download information errors, length of visits to certain pages, page interaction information (such as scrolling, clicks, and mouse-overs), and methods used to browse away from the page and any phone number used to call the Firm.

2.3 Technical Data

2.4 Profile Data

2.5 Usage Data

2.6 We may also collect, use and share aggregated data such as statistical or demographic data for any purpose. Such data does not directly or indirectly reveal your identity.

2.7 Where we need to collect personal data by law or under the terms of the contract with you and you fail to provide data when requested we may not be able to perform the contract we have or trying to enter into with you. In this case we may have to cancel any service you have with us.

The information and Personal Data collected is limited to what is necessary for the Firm to provide a service to you.

The information the Firm will hold will be accurate, and kept up to date (where necessary) however the Firm is not responsible if you have inputted incorrect Data but you will have the right of rectification of inaccurate Personal Data.

In certain circumstances the Firm will be required to obtain Special Categories of Personal Data from you if such Special Categories of Personal Data is required in order for the Firm to provide the service.

3. Cookie Usage

There are instances where we may use cookies to gather information regarding our services in a mathematical collection for our website and our advertisers.

Any information collected will not have any identifying data. It is statistical data about our visitors and how they have used our site. No Personal Data will be shared that could identify you.

We may assemble information about your common internet use with a cookie file. When used, the cookies are downloaded to your computer automatically. The cookie is stored on the hard drive, with transferred information. The data sought by the cookie helps us improve our website and any service offered to you.

We use cookies to identify you when you visit any website of the Firm and to keep track of your browsing patterns.

Your browser has the ability to decline cookies. This is done by setting your browser options to decline all cookies.

Our advertisers may download cookies to which we have no control. If used, these cookies are downloaded by clicking on an advertisement found on our website

4. Data Use - Why :

4.1 The Personal Data collected is used for a specified purpose and is necessary for the performance of our Services, a legitimate interest pursued by the Firm or to comply with a legal obligation to which the Firm is subject.

4.2 We have set out below on table format, a description of some of the ways we plan to use your personal data and the legal basis we rely on to do so.

Purpose/Activity	**Type of data**	**Lawful basis for processing including basis of legitimate interest**
To register you as a new client	(a) Identity (b) Contact	Performance of a contract with you Carrying out the necessary Money Laundering Regulations.
To process and deliver your service including:	(a) Identity	(a) Performance of a contract with you

(a) Manage payments, fees and charges (b) Collect and recover money owed to us	(b) Contact (c) Financial (d) Transaction (e) Marketing and Communications	(b) Necessary for our legitimate interests (to recover debts due to us)
To manage our relationship with you which will include: (a) Notifying you about changes to our terms or privacy policy (b) Asking you to leave a review or take a survey	(a) Identity (b) Contact (c) Profile (d) Marketing and Communications	(a) Performance of a contract with you (b) Necessary to comply with a legal obligation (c) Necessary for our legitimate interests (to keep our records updated and to study how customers use our products/services)
To enable you to partake in a prize draw, competition or complete a survey	(a) Identity (b) Contact (c) Profile (d) Usage (e) Marketing and Communications	(a) Performance of a contract with you (b) Necessary for our legitimate interests (to study how customers use our products/services, to develop them and grow our business)
To administer and protect our business and our website (including troubleshooting, data analysis, testing, system maintenance, support, reporting and hosting of data)	(a) Identity (b) Contact (c) Technical	(a) Necessary for our legitimate interests (for running our business, provision of administration and IT services, network security, to prevent fraud and in the context of a business reorganisation or group restructuring exercise) (b) Necessary to comply with a legal obligation
To deliver relevant website content and advertisements to you and measure or understand the effectiveness of the advertising we serve to you	(a) Identity (b) Contact (c) Profile (d) Usage (e) Marketing and Communications (f) Technical	Necessary for our legitimate interests (to study how customers use our products/services, to develop them, to grow our business and to inform our marketing strategy)

To use data analytics to improve our website, products/services, marketing, customer relationships and experiences	(a) Technical (b) Usage	Necessary for our legitimate interests (to define types of customers for our products and services, to keep our website updated and relevant, to develop our business and to inform our marketing strategy)
To make suggestions and recommendations to you about goods or services that may be of interest to you	(a) Identity (b) Contact (c) Technical (d) Usage (e) Profile	Necessary for our legitimate interests (to develop our products/services and grow our business)
In some circumstances we will require sensitive Personal Data from you so that we can carry out our service.	(a) Special Categories of Personal Data	Necessary for our legitimate interest to provide our service to you

4.3 Please note that your Personal Data may be used to send you details of other services we offer and have identified as likely to be of interest to you. We will not do so without first obtaining your Consent. You will be provided with the Opt-In statement before the Firm collects any information. If it any point you would like to opt out of receiving communications from us please contact legalservices@bramsdonandchilds.com

4.4 You are able to withdraw your Consent at any time.

5. Personal Data Storage

5.1 Personal Data will be stored on secure servers.

5.2 You should understand Data via online transmission is not completely secure. We cannot guarantee full protection and security, only that we take all reasonable action to protect information sent to us electronically. Transmission of any data by you is at your own risk. Where applicable you may be given access to sections of our site that require a password. You are responsible for the passwords safety and confidentiality.

5.3 The Firm will only retain your Personal Data for as long as necessary to fulfill the purpose we collected it for including for the purposes of satisfying any legal, accounting or reporting requirements

5.4 The Firm retains basic information about our clients (including Contact, identity, Financial and Transaction Data) for six years after they cease being clients.

5.5. The Firm may retain some Personal Data indefinitely provided that the retention is used for a specified purpose and is necessary for the performance of our Services, a legitimate interest pursued by the Firm or to comply with a legal obligation to which the Firm is subject. An example of such retention is the storage of Wills which must be stored indefinably and cannot be destroyed after six years.

5.6 In some circumstances we may anonymise your personal data (so that it can no longer be associated with you) for research or statistical purposes in which case we may use this information indefinitely without further notice to you.

6. Disclosing Customer Data:

1. The Firm may share your Personal Data with any member of the Firm, third party service providers and any other entities in the Firm.

2. The Firm will not transfer your Personal Data to third parties unless the following circumstances apply:

    a. In the event that Firm sell or buy any business or assets, in which case the Firm may disclose your Personal Data and any other information to the prospective seller or buyer of such business or assets.

    b. If the Firm or substantially all of its assets are acquired by a third party, in which case Personal Data, and any other information held by it about its clients will be one of the transferred assets.

    c. If the Firm is under a duty to disclose or share your Personal Data or other information in order to comply with any legal obligation, and other agreements; or to protect the rights, property, or safety the company, their customers, App Users or others. This includes exchanging information with other companies and organisations for the purposes of fraud protection and credit risk reduction.

    d. The Firm may be required to transfer your Personal Data to a third party in order to perform our services. We shall not disclose your Personal Data to a third party without your consent.

3. We will share your personal information with third parties where required by law, where it is necessary to administer the working relationship with you or where we have another legitimate interest in doing so.

7. Third Party Links

Third party links may be discovered on our site. These third party links have their own privacy policy, which you agree to when you click on the link. We are not responsible nor do we accept responsibility for third party links. Our liability covers us only on our site, and thus we do not accept liability for third party links as we have no control over them.

8. Profiling

The Firm will not process your Personal Data by Profiling.

9. Your Rights

9.1 Information Accessibility:

1. You have a right to see your Personal Data unless providing a copy adversely affects the rights and freedoms of others. If you request additional copies of Data a reasonable fee may be charged.
2. The Data Controller must respond within one month. This may be extended by a further two months if the request is complex or there are numerous requests and the Data Controller will inform you of such a delay.
3. You have a right to obtain info about the Data Controller processing including:
    a) The purpose of data processing
    b) Categories of data processing
    c) Recipients of the data
    d) How long the data is stored.
    e) The source of the Personal Data if it has not come from you.

9.2 Right to Rectification:

1. You have the right to rectification of any inaccurate Personal Data.
2. You have the right to request incomplete information is completed.

9.3 Right to Erasure:

1. You have a right for the Firm to erase your Personal Data in the following circumstances:
    a. the Personal Data is no longer required for the purpose in which they were requested.
    b. You withdraw your Consent.
    c. You object to the processing of your Personal Data
2. The Firm may refuse to act on the request if continued retention of the Personal Data is necessary for:
    a. Exercising the right of freedom and expression.
    b. Complying with a legal obligation
    c. Performance of a task carried out in public interest.
    d. Establishment exercise or defense of legal claims.
    e. Exercising official authority vested in Data Controller
    f. Public health reasons consistent with the exceptions for processing Personal Data such as health information.

9.4 Right to Restrictions of Processing

1. You have the right to restrict the processing of your Personal Data under certain circumstances:

    a. If you contest to the accuracy of the data the Data Controller must restrict the processing until it can verify its accuracy.
    b. The processing is unlawful
    c. The Data Controller no longer needs to process the data and the Data Subject needs the data for establishment, exercise or defense of legal claims.
    b. Where you object to processing that relies on public interest or a third party's legitimate interest the Data Controller must restrict processing until it can verify whether the third party's or Data Controller's legitimate interest overrides your interest.
2. Where you exercise the right of restriction the company can continue to store the Personal Data but will only process it:
    c. With your consent
    d. To establish, exercise or defend legal claims
    e. To protect the rights of another individual or legal entity
    f. For important public interest reasons

9.5 You can object to Data Processing under certain circumstances, including:

a) For direct marketing purposes

b) For scientific, or historical research or statistical purposes
c) Profiling in order to perform a task in the public interest or the Data Controller or Third Party's legitimate interests unless the Data Controller demonstrates a compelling legitimate ground for processing the Personal Data that overrides your interest or if the Data Controller needs to process the data to establish exercise or defend legal claims.

9.6 Data Portability

1. You have the right to:
    a. Receive a copy of the Personal Data in a commonly used & readable format
    b. Transmit the Personal Data to another Data Controller
    c. Have the personal data transmitted directly from one Data Controller to another where technically possible.
2. You can only exercise this right if:
    a. The personal data relates to you and can clearly be linked to you
    b. The personal data was provided to the Data Controller by you
3. The Data Controller can refuse or restrict this right if data portability will adversely affect the rights of third parties.

9.7 Automated Decision Making Objection Rights

1. You have a right to not be subject to automated decision making including profiling unless the automated decision is necessary for exercising or performing a contract with you or if you have provided consent.

10. Contacting Us

Please feel free to contact us with queries, requests, or comments you may have about our Privacy Policy. We welcome any communication via the email address supplied here: legalservices@bramsdonandchilds.com

Last reviewed: 25th May 2018

11. How to exercise your rights:

If you wish to exercise any of the rights outline in Clause 9 of this policy please contact the Data Controller, Mr. Andrew White at legalservices@bramsdonandchilds.com

12. Disputes

You have the right to make a complaint at any time to the Information Commissions Office (ICO), the UK supervisory authority for data protection issues (www.ico.org.uk). We would, however, appreciate the chance to deal with your concerns before you approach the ICO so please contact us in the first instance.

BRAMSDON & CHILDS
SOLICITORS

CLIENT QUESTIONNAIRE

Client Name…… **Matter Number……..**

Date…….. **Fee Earner ……..….**

1. How did you find out about us?
PLEASE TICK ONE BOX

☐ Local press ☐ Yellow Pages

☐ Citizens Advice Bureau ☐ Other directories

☐ Referral agency ☐ Recommendation

☐ Business contact ☐ Other

2. Was it easy or difficult to make initial contact?……..

3. How satisfied were you with our overall level of service?
PLEASE TICK ONE BOX

☐ Very satisfied ☐ Fairly dissatisfied

☐ Fairly satisfied ☐ Very dissatisfied

☐ Undecided

If dissatisfied please tell us why ……..
……..

4. Did we give you information/advice that was easy to understand?
PLEASE TICK ONE BOX

☐ Very easy ☐ Fairly difficult

☐ Fairly easy ☐ Very difficult

☐ Undecided

How might we improve?……
……..

5. How informative did you find our staff?
PLEASE TICK ONE BOX

☐ Very good ☐ Fairly poor

☐ Fairly good ☐ Very poor

☐ Undecided

Noted by ALW/
Date:

6. How well did we keep you up to date with progress?
PLEASE TICK ONE BOX

☐ Very good ☐ Fairly poor

☐ Fairly good ☐ Very poor

☐ Undecided ☐ N/A - one off advice given

7. How well did we listen to what you had to say?
PLEASE TICK ONE BOX

☐ Very well ☐ Fairly poor

☐ Fairly well ☐ Very poor

☐ Undecided

8. Did we treat you fairly at all times?
PLEASE TICK ONE BOX

☐ Yes ☐ No ☐ Don't know

If you believe you were treated unfairly due to e.g your ethnic background, sex, religion or any other reason please tell us what happened……
……..

9. Would you recommend us to someone else if they needed legal help or advice?
PLEASE TICK ONE BOX

☐ Certain to ☐ Unlikely to

☐ Likely to ☐ Certain not to

☐ Undecided

Please give your reason(s)……
……..

10. Was the result of your case better, worse or the same as we had advised you?
PLEASE TICK ONE BOX

☐ Better ☐ Same ☐ Worse

11. Do you have any further comments or suggestions that may help us to improve our level of service?

……

12. May we reproduce your comments for marketing purpose (by name and area)

☐ Yes ☐ No

THANK YOU FOR COMPLETING THIS QUESTIONNAIRE

Lawyer Checker thirdfort

Introducing Thirdfort.

Thirdfort is an app used by your lawyer.

Lawyers are required to verify every client's identity and confirm that a property buyer's money is from a legitimate source ("Source of Funds").

Traditionally, you would have been required to provide originals or copies of your identity document and bank statements to your lawyer, which is inconvenient and slows down your transaction.

Thirdfort empowers you to share this information direct with your lawyer using the Thirdfort app, providing a safer and more convenient way to carry out these checks and speed up your transaction.

★★★★★

Helen Randall

Absolutely brilliant customer service

★★★★★

David S

Bringing solicitors into the 21st century

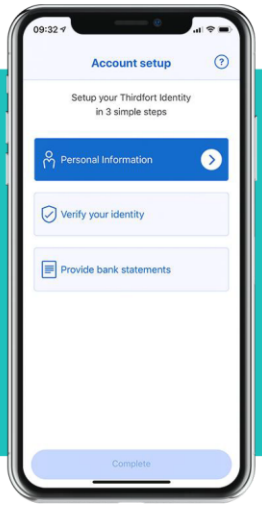
★★★★★

Nimika Patel

Easy and simple experience.

How to use the Thirdfort App.

1. Receive text message from Thirdfort and download app
2. Complete ID check and provide electronic bank statements
3. Upload a proof of address and any additional documents
4. If your lawyer requires, complete Source of Funds questionnaire



Why am I being asked to use Thirdfort?

Identity theft in property transactions is increasing. Providing paper documents is unsafe and time consuming. Thirdfort ensures your transaction is:

Secure
Sharing information through our app is more secure than providing paper documents

Convenient
No documents means you can use Thirdfort from the comfort of your own home

Fast
Using Thirdfort takes minutes meaning there are no delays to your transaction

Have a question?
You can contact us at help@thirdfort.com